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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRM-M-44591-2024**Date of Decision: 07.01.2025**

Gurwinder Singh and another

...Petitioners

vs.

State of Punjab and another

...Respondents

Coram : Hon'ble Mr. Justice N.S.Shekhawat**Present :** Mr. Sunny K. Singla, Advocate
for the petitioners.

Mr.M.S.Bajwa, Deputy Advocate General, Punjab.

Mr. Navdeep Jain, Advocate for
Mr. Shubham Chandel, Advocate
for the complainant.

N.S.Shekhawat J. (Oral)

1. The instant petition has been filed under Section 528 of Bharatiya Nagarik Suraksha Sanhita, 2023 for quashing of FIR No. 57 dated 25.07.2024 registered under Sections 109, 115(2), 324, 3(5) of BNS, 2023 at Police Station Sadar Ahmedgarh, District Malerkotla (Annexure P-1) and all subsequent proceedings arising therefrom on the basis of compromise (Annexures P-2 & P-3).

2. Vide order dated 07.11.2024, this Court had directed the parties to appear before the Illaqa Magistrate/trial Magistrate for getting their statements recorded with respect to the compromise (Annexures P-2 & P-3).

3. Pursuant to aforesaid order, the parties have appeared before the Judicial Magistrate 1st Class, Malerkotla and got their statements recorded.



Report dated 23.12.2024 has been received whereby after recording the statements of the parties, the Court below has shown its satisfaction that the compromise is genuine, voluntary and without any coercion or undue influence.

4. As per status report filed by learned State counsel, all injuries suffered by the injured were simple in nature. Even, no other criminal case was ever registered against the petitioners.

5. I have heard counsel for the parties and gone through the case file.

6. In the light of the satisfaction shown by the Court below and considering the offence for which the accused have been charged are not of serious nature, together with the fact that compromise will go a long way in ironing out the differences for betterment of future life of the parties and also in view of the law laid down in **Gian Singh Vs. State of Punjab and another, 2012 (4) RCR (Criminal) 543** and **Kulwinder Singh and others Vs. State of Punjab 2007(3) RCR (Criminal) 1052**, the present petition for quashing the FIR is allowed qua the petitioners.

7. Resultantly, FIR No. 57 dated 25.07.2024 registered under Sections 109, 115(2), 324, 3(5) of BNS, 2023 at Police Station Sadar Ahmedgarh, District Malerkotla (Annexure P-1) and all subsequent proceedings arising therefrom on the basis of compromise (Annexures P-2 & P-3) are hereby quashed qua the petitioners.

(N.S.SHEKHAWAT)
JUDGE

07.01.2025
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Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No